

New Jersey firearms qualification: the documentation checklist

What the Attorney General's standards require, written as a tick list for the file you would hand to a county prosecutor, an internal affairs investigator or a plaintiff's attorney. Every item that states a requirement cites the document it comes from. Items marked **good practice** are BrassOps' recommendations, not state requirements.

SOURCES CITED BELOW STANDARDS = *Semi-Annual Firearms Qualification and Requalification Standards for New Jersey Law Enforcement*, Office of the Attorney General, Division of Criminal Justice (issued December 1989; revised May 2003, effective January 1, 2004). **AG DIRECTIVE 2020-4** (May 8, 2020) and **AG DIRECTIVE 2021-7** (June 25, 2021) adjusted the twice-yearly requirement for calendar years 2020 and 2021 only. **STATE RANGE MASTER FAQ** = *Frequently Asked Questions*, John H. Zamrok, State Range Master, Division of Criminal Justice.

(a) Courses and frequency

- ☐ Two qualification sessions per calendar year, at least three months apart. Standards, Definitions, "Semi-annual": "two prescribed qualification sessions within a 12-month period (a calendar year), with at least three months time between each qualification."
- ☐ Each cycle covers both day and night. Standards, Definitions, "Qualification": "Qualification and requalification is required both during daylight hours and under night firing conditions."
- ☐ Handgun, day: HQC1 (Appendix A) or HQC2 (Appendix B), the agency's choice, minimum 80%. Standards, Handgun Qualification; State Range Master FAQ (HQC1 is 60 rounds, HQC2 is a 50-round equivalent course).
- ☐ Handgun, night: HNQC (Appendix C), minimum 80%, fired with a handheld or gun-mounted light; mandatory since January 1, 2004. Standards, Handgun Night Qualification Course, 2003 revision.
- ☐ Shotgun: Shotgun Qualification Course (SQC, Appendix D), minimum 80%, semi-annually, for the agency-issued or approved shotgun, with a night version on the same schedule. Standards, Shotgun Qualification.
- ☐ Subgun, service rifle, carbine and scoped rifle: the Standards' own day and night courses for each platform (ASQC/ASNQC, ARQC, PCQC/PCQNC, scoped rifle course). Confirm the current appendix and passing score for each long gun your agency fields. Standards, 2001 and 2003 revisions.
- ☐ Night course fired under real or artificially created night conditions; headlights, emergency lights or other lighting may be used for realism. Standards, HNQC course notes.
- ☐ Know which directive is in force. The statute requires an initial firearms course and then annual qualification (N.J.S.A. 2C:39-6j); the Standards require two sessions a year; Directives 2020-4 and 2021-7 reduced that to one session for 2020 and 2021 only. AG Directive 2020-4; AG Directive 2021-7.

(b) Who must qualify, and with which weapons

- ☐ Every officer, with every weapon carried on a regular basis for routine duty. Standards: requalification "twice a year with any weapon carried on a regular basis as part of an officer's equipment for performance of routine official duties."
- ☐ Duty handgun: HQC1 or HQC2 and HNQC, twice a year each.
- ☐ Off-duty handgun that is substantially different in design, function or caliber from the service handgun (as determined by the agency executive or supervising firearms instructor): HQC1 or HQC2 twice a year at 80% and HNQC twice a year at 80%. Standards, Off-Duty Handgun.
- ☐ Off-duty handgun that is not substantially different: a separate day or night qualification is at the discretion of the agency executive. Record the determination either way. Standards, Off-Duty Handgun.
- ☐ Shotgun, if issued or approved for the officer: SQC semi-annually. Standards, Shotgun Qualification.
- ☐ Patrol rifle or subgun, if the officer is authorized to carry one: the platform's qualification course semi-annually, including the night course where the rifle is used as a patrol supplement or on entries. State Range Master FAQ; AG Directive 2020-4 (qualification round plus training/familiarization round in 2020).
- ☐ An officer who does not pass shall not be permitted to carry firearms. Attorney General directive adopting the Standards as agency policy, effective January 1, 1991.

(c) The record of each qualification

The Standards require a "Firearms Record": a record of firearms qualification activities for each officer required to participate, completed and maintained chronologically each time the officer qualifies or requalifies, in an individual written file showing the make, model, caliber and serial number of each firearm and the training and qualification results. The agency must ensure the record is completed for each participant, including the model and serial number of every weapon used and the scores achieved. Standards, Firearms Record. The items below put that into fields.

- ☐ Officer name, badge or ID number, rank, assignment.
- ☐ Date of each session, and the calendar-year cycle it counts toward (first or second session; at least three months from the other). Standards, Definitions.
- ☐ Each weapon fired: make, model, caliber, serial number, and whether it is the duty, off-duty, shotgun or rifle weapon. Standards, Firearms Record.
- ☐ Course fired, by its name in the Standards (HQC1, HQC2, HNQC, SQC, and the long-gun courses), and the revision of the Standards in force on that date.
- ☐ Day or night. For the night course: actual or artificially created night conditions, the light used (handheld or gun-mounted) and any ambient lighting (headlights, emergency lights). Standards, HNQC.
- ☐ Ammunition fired: service load or equivalent load. Standards, Definitions, "Equivalent load".
- ☐ Supervising firearms instructor who ran the session, by name, and a pointer to that instructor's certification record (section e). Standards: "All qualification sessions must be conducted under the supervision of a qualified supervising firearms instructor."

- ☐ Score, the passing standard applied (80% for the handgun, night handgun and shotgun courses), and the result: qualified or non-qualifying. Standards, Qualification Score; Definitions, "Non-qualifying participant".

- ☐ **Good practice:** range location, relay, time of day, weather, the officer's signature or acknowledgement, and the scored target or a photograph of it.
- ☐ **Good practice:** for an off-duty handgun, the written "substantially different" determination and who made it.

(d) When an officer fails

- ☐ Remedial instruction is required, given after the supervising firearms instructor analyzes the problems that may have led to the failure. Standards, Remedial Training: "A participant who fails to achieve a passing score on a prescribed qualification course shall receive remedial instruction."
- ☐ Document the instructor's analysis of the cause, including the check of the participant's firearm. Standards, Remedial Training.
- ☐ Document the time allotted and the method of remedial training, both set by the supervising firearms instructor. Standards, Remedial Training.
- ☐ Document every subsequent attempt to qualify after remediation, and its result. Standards: "Document any subsequent attempts to qualify and the results of those attempts."
- ☐ If the officer still does not fire a passing score after remedial training and subsequent attempts, the supervising firearms instructor shall report it; keep that report in the file. Standards, Remedial Training.
- ☐ Record when the officer was disarmed and when carry authority was restored. The Standards bar an officer who does not pass from carrying; when remediation happens, how long it runs and when the officer is disarmed are set by agency policy, so cite your policy in the file. 1991 adopting directive; State Range Master FAQ.

(e) Instructor records

- ☐ A copy of each firearms instructor's Police Training Commission certification to instruct firearms in a basic recruit training program, or the record of equivalent training the agency accepted. Standards, Definitions, "Firearms instructor".
- ☐ For instructors who run subgun or rifle qualifications, the Division of Criminal Justice instructor course for that discipline or an equivalent course. State Range Master FAQ.
- ☐ A record linking every qualification session to the supervising firearms instructor who ran it, so the officer file and the instructor file agree. Standards, Definitions, "Qualification".
- ☐ **Good practice:** instructor certification expiry dates, in-service and recertification history, and who was certified on the date of any session a court later asks about.

(f) Retention and producing records

- ☐ Retention period: the state records retention schedule for municipal police departments (Records Management Services, NJ Division of Revenue and Enterprise Services) governs how long the file must be kept. Confirm the series and period with your records custodian; do not destroy a qualification record without a signed disposal authorization.
- ☐ OPRA: a training file is a government record. Know which parts your records custodian will release and which exemptions apply, and be able to produce the file within the statutory response time. Open Public Records Act, N.J.S.A. 47:1A-1 et seq.
- ☐ Subpoena or discovery: produce the complete chronological file, including every non-qualifying score, remedial record and subsequent attempt. A file with the failures removed is worse than a file with failures documented.
- ☐ Internal affairs or a use-of-force review: the file must answer, for the date in question, which weapon the officer was qualified with, on which course, day and night, and under whose supervision.
- ☐ **Good practice:** an audit trail showing who created or changed each record and when, and a litigation hold procedure that freezes a file the moment an incident is reported.

HOW BRASSOPS KEEPS THIS FILE

BrassOps records every qualification against the officer, the weapon (make, model, caliber, serial number), the course, the score, the standard in force on that date, the lighting condition and the certified instructor who supervised it, and freezes that standard on the record so a later change to a course never rewrites an old verdict. Failures open a remedial case with the instructor's analysis, the remedial work and every subsequent attempt attached, and the activity log keeps a searchable audit trail of every change. One officer's complete file prints as a single records-request packet with a custodian certification, ready for OPRA, a subpoena or internal affairs.

Confirm against the current Attorney General directive; standards change.

General information, not legal advice. Quotations are from the documents named above as published by the Office of the Attorney General; the Standards were last revised in 2003 and directives are issued from time to time, so read the current version before relying on this checklist.